

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION REQUIRING THE STUDY AND SUBMITTAL OF A REPORT TO THE GOVERNING BODY REGARDING VEHICLES VIOLATING POSTED SPEED LIMITS ON THE CITY'S ROADWAYS AND VEHICLES DISREGARDING TRAFFIC SIGNALS AND RUNNING RED LIGHTS."

WHEREAS, according to the 2020 Census from the U.S. Census Bureau, the population of the city of Cheyenne is 65,132, making it the most populated city in Wyoming;

WHEREAS, being the most populated city, Cheyenne has an increased amount of vehicle traffic and congestion, which in turn, causes an increased amount of traffic enforcement issues;

WHEREAS, these traffic enforcement issues vary but of particular concern are issues relating to vehicles violating posted speed limits on the city's roadways and vehicles disregarding traffic signals and running red lights;

WHEREAS, speeding vehicles in Cheyenne can create inordinate noise and significantly endanger the people of Cheyenne;

WHEREAS, vehicles disregarding traffic signals and running red lights also significantly endanger the people of Cheyenne;

WHEREAS, according to the Insurance Institute for Highway Safety, there were 12,330 speeding-related fatalities in the United States in 2021, with speeding-related fatalities accounting for twenty-nine percent (29%) of traffic deaths that year;

WHEREAS, according to the Governors Highway Safety Association, an estimated 116,000 people were injured and 928 people were killed in crashes that involved red light running in the United States for the year 2020—half of those killed were pedestrians, bicyclists and people in other vehicles who were hit by the red light runners;

WHEREAS, under Wyoming Statute § 15-1-103(a)(xi), cities and towns have the authority to "[t]ake all necessary action to plan, construct or otherwise improve, modify, repair, maintain and regulate the use of streets[.]"

WHEREAS, under Section 10.12.130 of the city code, the city traffic engineer, under the supervision and direction of the city engineer, is responsible for the installation and maintenance of traffic control devices, and for maintaining the plan for the operation of traffic on the streets and highways of the city;

WHEREAS, in accordance with the authority vested by state statute and under the city code, the Cheyenne Police Department is responsible for enforcing the traffic laws within Cheyenne;

WHEREAS, due to the size of Cheyenne, staffing challenges and other logistical constraints, the Cheyenne Police Department simply cannot be everywhere at all times to monitor and apprehend those who choose to violate posted speed limits or run red lights;

WHEREAS, because of the problems and dangers presented by this illegal conduct, the Governing Body believes it is necessary for the Office of City Engineer in conjunction with the Cheyenne Police Department to identify, study and analyze those areas within Cheyenne where occurrences of unlawfully speeding vehicles and vehicles running red lights are most acute and serious;

WHEREAS, based on their analysis and relying upon each agency's individual expertise, the Governing Body seeks that a report be submitted articulating the analysis conducted and any recommendations the agencies may have for better addressing and enhancing the enforcement of the city's traffic laws pertaining to speeding vehicles and vehicles running red lights, which recommendations may include implementing additional traffic control devices or the installation and use of automated enforcement systems such as speed and red light cameras; and

WHEREAS, if the recommendations include the installation and use of automated enforcement systems, an identification of the most appropriate devices and most qualified vendors and service providers are to be included in the report, along with estimates on any associated costs.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Office of City Engineer in conjunction with the Cheyenne Police Department shall conduct the study and analysis and submit the report to the Governing Body on or before December 31, 2023, detailing the study's results and any recommendations consistent with the provisions of this resolution; and

BE IT FURTHER RESOLVED, that upon submittal of the report, the Governing Body shall schedule a work session during which appropriate staff from the Office of City Engineer and the Cheyenne Police Department shall present the results of the study, the substance of the report and associated recommendations for better addressing and enhancing the enforcement of the city's traffic laws relative to unlawfully speeding vehicles and vehicles running red lights.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk